

**SUBSTITUTE FOR
SENATE BILL NO. 313**

A bill to amend 1973 PA 116, entitled
"An act to provide for the protection of children through the
licensing and regulation of child care organizations; to provide
for the establishment of standards of care for child care
organizations; to prescribe powers and duties of certain
departments of this state and adoption facilitators; to provide
penalties; and to repeal acts and parts of acts,"
by amending sections 2, 3, 5n, 10, and 11c (MCL 722.112, 722.113,
722.115n, 722.120, and 722.121c), section 2 as amended by 2022 PA
111, section 3 as amended and section 11c as added by 2017 PA 257,
section 5n as added by 2017 PA 256, and section 10 as amended by
2023 PA 304.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2. (1) The departments of health and human services and



1 licensing and regulatory affairs are responsible for developing
2 rules for the care and protection of children in organizations
3 covered by this act and for promulgating these rules according to
4 the administrative procedures act of 1969, 1969 PA 306, MCL 24.201
5 to 24.328.

6 (2) The department shall establish an ad hoc committee for
7 each type of child care organization as defined in this act when it
8 is formulating or amending rules under this act. The committee
9 shall consist of not less than 12 members, and must include
10 representatives of the following groups and agencies:

11 (a) Department of health and human services.

12 (b) Department of licensing and regulatory affairs, bureau of
13 fire services, and state fire safety board.

14 (c) Department of education.

15 (d) Representatives of organizations affected by this act.

16 (e) Parents of children affected by this act.

17 (3) A majority of the members appointed to the committee
18 established by subsection (2) must be representatives of
19 organizations affected by this act and parents of children affected
20 by this act. The committee shall serve during the period of the
21 formulation of rules, shall have responsibility for making
22 recommendations on the content of rules, and shall recommend to the
23 department revisions in proposed rules at any time before the rules
24 are promulgated.

25 (4) The rules promulgated under this act ~~shall~~**must** be
26 restricted to the following:

27 (a) The operation and conduct of child care organizations and
28 the responsibility the organizations assume for child care.

29 (b) The character, suitability, health, training, and



1 qualifications of applicants and other persons directly responsible
2 for the care and welfare of children served.

3 (c) The character and health of household members.

4 (d) The general financial ability and competence of applicants
5 to provide necessary care for children and to maintain prescribed
6 standards.

7 (e) The number of individuals or staff required to ensure
8 adequate supervision and care of the children received.

9 (f) The appropriateness, safety, cleanliness, and general
10 adequacy of the premises, including maintenance of adequate fire
11 prevention and health standards to provide for the physical
12 comfort, care, and well-being of the children received. The rules
13 with respect to fire prevention and fire safety do not apply to a
14 child care center established and operated ~~by an intermediate~~
15 ~~school board, the board of a local school district, or by the board~~
16 ~~or governing body of a state approved nonpublic~~ **in a school, if the**
17 **either of the following applies:**

18 **(i) The** child care center is located in a school building that
19 is approved by the bureau of fire services created in section 1b of
20 the fire prevention code, 1941 PA 207, MCL 29.1b, or other similar
21 authority as provided in section 3 of 1937 PA 306, MCL 388.853, for
22 school purposes and is in compliance with the school fire safety
23 rules, R 29.1901 to R 29.1934 of the Michigan Administrative Code,
24 as determined by the bureau of fire services or a fire inspector
25 certified under section 2b of the fire prevention code, 1941 PA
26 207, MCL 29.2b.

27 **(ii) The superintendent of the intermediate school district or**
28 **local school district certifies that the school building has the**
29 **approval described under subparagraph (i).**



1 (g) Provisions for food, clothing, educational opportunities,
2 programs, equipment, and individual supplies to assure the healthy
3 physical, emotional, and mental development of children served.

4 (h) Provisions to safeguard the legal rights of children
5 served.

6 (i) Maintenance of records pertaining to admission, progress,
7 health, and discharge of children.

8 (j) Filing of reports with the department.

9 (k) Discipline of children.

10 (l) Transportation safety.

11 (5) Rules once promulgated are subject to major review by an
12 ad hoc committee not less than once every 5 years and must be
13 reviewed biennially by the department. The ad hoc committee shall
14 be established by the department, shall consist of not less than 12
15 members, and shall include representatives of the groups and
16 agencies indicated in subsection (2). The ad hoc committee shall
17 hold at least 2 public hearings regarding the review of rules and
18 shall report its recommendations regarding rules to the appropriate
19 committees of the legislature.

20 (6) Unless there is an immediate federal obligation or an
21 immediate risk to health and safety as determined by the
22 department, a child care center, group child care home, or family
23 child care home that is controlled by a rule promulgated under this
24 act has not less than 90 days after a rule is promulgated to become
25 compliant with the rule.

26 Sec. 3. (1) The rules promulgated by the department under this
27 act ~~shall~~**must** be used by the department, the bureau of fire
28 services, and local authorities in the inspection of and reporting
29 on child care organizations covered by this act. The inspection of



1 the health and fire safety of child care organizations ~~shall~~**must**
2 be completed by department staff, the bureau of fire services, or
3 local authorities upon request of the department, or according to
4 subsection (2).

5 (2) If an inspection is not conducted according to subsection
6 (1), a person owning or operating or ~~who~~**that** proposes to own or
7 operate a child care organization **must comply with either of the**
8 **following:**

9 (a) **The person** may enter **into** a contract with a local
10 authority or other person qualified by the department to conduct an
11 inspection according to subsection (1) and pay for that inspection
12 after an inspection is completed according to this subsection.

13 (b) **If the child care organization is a child care center in a**
14 **school building, the person provides the department with**
15 **certification from the superintendent of the intermediate school**
16 **district or local school district that the health and fire safety**
17 **described under subsection (1) is sufficient in the school**
18 **building.**

19 (3) The rules promulgated by the department for foster family
20 homes and foster family group homes ~~shall~~**must** be used by a child
21 placing agency or governmental unit when investigating and
22 certifying a foster family home or a foster family group home.

23 (4) Inspection reports completed by state agencies, local
24 authorities, and child placing agencies ~~shall~~**must** be furnished to
25 the department and ~~shall~~**will** become a part of its evaluation for
26 licensing of organizations covered by this act. After careful
27 consideration of the reports and consultation where necessary, the
28 department shall assume responsibility for the final determination
29 of the issuance, denial, revocation, or provisional nature of



1 licenses issued under this act. A report of findings ~~shall~~**must** be
2 furnished to the applicant or licensee.

3 Sec. 5n. (1) Except as otherwise provided in subsection (13),
4 when a person, partnership, firm, corporation, association,
5 governmental organization, or nongovernmental organization applies
6 for or applies to renew a license to operate a child care center,
7 group child care home, or family child care home under section 5m
8 and before a group child care home or family child care home allows
9 an individual to be a member of the household, or a child care
10 center, group child care home, or family child care home allows an
11 individual to become a child care staff member, the department
12 shall do all of the following:

13 (a) Review its database of individuals with previous
14 disciplinary action within a child care center, group child care
15 home, or family child care home or an adult foster care facility.

16 (b) Conduct a search of the individual through the national
17 sex offender registry.

18 (c) Request a search of the individual through all state
19 criminal registries or repositories for any states of residence in
20 the past 5 years.

21 (d) Request that the department of state police perform a
22 criminal history check on the individual, child care staff member,
23 or adult member of the household.

24 (2) If the individual, child care staff member, or adult
25 member of the household has resided out of the United States within
26 the preceding 5 years, equivalent clearances of those described in
27 subsection (1)(b) and (d) and section 5q from each country must be
28 provided, if available. If the country does not have the equivalent
29 clearance, the individual must sign a self-certifying statement



1 that ~~he or she~~ **the individual** is not ineligible to receive a
2 license, to be an adult member of the household, or to be a child
3 care staff member as prescribed by sections 5q and 5r. An
4 individual who provides or is determined to have provided false
5 information or knowingly omits information in the self-
6 certification statement is ineligible for that application.

7 (3) Each individual listed in subsection (1) shall give
8 written consent at the time of the license application and before a
9 group child care home or family child care home allows an
10 individual to be a member of the household, or before becoming a
11 child care staff member to allow the department of state police to
12 conduct the criminal history check required under subsection (1).
13 The department shall require the individual to submit ~~his or her~~
14 **the individual's** fingerprints to the department of state police and
15 the Federal Bureau of Investigation for the criminal history check
16 as required in subsection (1).

17 (4) The department shall request a criminal history check
18 required under this section on a form and in the manner prescribed
19 by the department of state police.

20 (5) Within a reasonable time after receiving a complete
21 request for a criminal history check on a person under this
22 section, the department of state police shall conduct the criminal
23 history check and provide a report of the results to the
24 department. The report ~~shall~~ **must** contain any criminal history
25 record information on the person maintained by the department of
26 state police and the Federal Bureau of Investigation.

27 (6) The department of state police may charge the department a
28 fee for a criminal history check required under this section that
29 does not exceed the actual and reasonable cost of conducting the



1 check. ~~The~~ **If the department does not receive a sufficient**
2 **appropriation in a fiscal year to cover the cost of conducting each**
3 **check required under this section, the department** may pass along to
4 the individual fingerprinted the actual cost or fee charged by the
5 department of state police, the Federal Bureau of Investigation, or
6 a vendor approved by the department of state police for performing
7 a criminal history check **during that fiscal year** required under
8 this section.

9 (7) The department shall provide whether the individual is
10 eligible or ineligible as provided by sections 5q and 5r within 45
11 days after the date on which the request was submitted.

12 (8) The individual may serve as a child care staff member
13 pending the results of the record and database checks required by
14 this section and section 5q if the individual is supervised at all
15 times.

16 (9) Within 45 days after the date on which the request was
17 submitted, the department shall provide a statement to the child
18 care center, group child care home, or family child care home that
19 indicates whether the individual is eligible or ineligible to be, a
20 licensee, an adult member of the household, or a child care staff
21 member as provided under sections 5q and 5r without revealing any
22 disqualifying crime or other related information regarding the
23 individual.

24 (10) If the individual is ineligible due to the records or
25 database checks required under this section and section 5q, the
26 department shall provide information related to each disqualifying
27 item in a report to the individual who has been determined
28 ineligible.

29 (11) An individual who has been determined to be ineligible as



1 provided under sections 5q and 5r may request a redetermination by
2 the department if ~~he or she~~ **the individual** believes that the basis
3 for the ineligible determination is inaccurate. The individual
4 shall file the request for redetermination with the department
5 within 30 calendar days after receiving the written notice that he
6 or she was determined to be ineligible. If an individual has been
7 determined to be ineligible based upon a conviction that has been
8 expunged or set aside or a central registry case that has been
9 expunged, the individual shall provide the supporting court, law
10 enforcement, or department of health and human services, or
11 equivalent department from another state, documents along with the
12 request for redetermination. The individual shall not be determined
13 to be ineligible based upon a conviction that has been set aside or
14 expunged or a central registry case that has been expunged. The
15 department shall review the request and issue a written decision
16 within 30 business days after receiving the request for
17 redetermination. The decision of the department is final.

18 (12) Each ineligible individual shall be given instructions
19 about how to complete the request for redetermination process as
20 provided in subsection (11).

21 (13) Except as otherwise provided in this subsection, not
22 later than September 30, 2017, every child care center licensee,
23 group child care home licensee, family child care home licensee,
24 child care staff member, and adult member of the household shall
25 submit ~~his or her~~ **the individual's** fingerprints to the department
26 of state police and the Federal Bureau of Investigation in order to
27 carry out the records and database checks required under this
28 section and section 5q. If the department of education obtains an
29 extension on the implementation of this program from the federal



1 government, the provisions of this section may be implemented no
2 later than September 30, 2018.

3 (14) If a licensee, licensee designee, or program director of
4 a child care center, group child care home, or family child care
5 home applying for a new license or to renew a license to operate a
6 child care center, group child care home, or family child care home
7 has previously undergone a criminal history check required under
8 subsections (1) and (13) and has remained continuously licensed
9 after the criminal history check has been performed, that licensee,
10 licensee designee, or program director of a child care center,
11 group child care home, or family child care home is not required to
12 submit to another criminal history check upon renewal of, or
13 application for, the license obtained under this act.

14 (15) Upon consent of an applicant as required in subsection
15 (3) and upon request from a child care center, group child care
16 home, or family child care home, the department shall review the
17 information received from the criminal history check, if any, and
18 notify the requesting child care center, group child care home, or
19 family child care home of the information in the manner prescribed
20 in subsection (7). Until the Federal Bureau of Investigation
21 implements an automatic notification system as outlined in section
22 5k, a child care center, group child care home, or family child
23 care home may rely on the criminal history record information
24 provided by the department under this subsection and a new request
25 as provided under this section is not necessary if all of the
26 following requirements are met:

27 (a) The criminal history check was conducted during the
28 immediately preceding 5-year period.

29 (b) The applicant has been continuously employed by a child



1 care center, group child care home, or family child care home since
2 the criminal history check was conducted in compliance with this
3 section.

4 (c) The applicant can provide evidence acceptable to the
5 department that ~~he or she~~ **the applicant** has been a resident of this
6 state for the immediately preceding 5-year period.

7 (16) The checks and clearances required in subsection (1)(a)
8 to (c) and section 5q ~~shall~~ **must** be updated at least every 5 years
9 if the individual has been continuously licensed, has continuously
10 been serving as a child care staff member, or has continuously been
11 an adult member of the household.

12 Sec. 10. (1) The department may investigate, inspect, and
13 examine conditions of a child care organization and may investigate
14 and examine the licensee's books and records. The licensee must
15 cooperate with the department's investigation, inspection, and
16 examination by doing all of the following:

17 (a) Admitting members of the department into the child care
18 organization and furnishing all reasonable facilities for thorough
19 examination of its books, records, and reports.

20 (b) Allowing the department to perform routine investigative
21 functions during the course of an investigation, inspection, or
22 examination. Routine investigative functions include, but are not
23 limited to, interviewing potential witnesses, such as staff and
24 household members, and taking photographs to assess and document
25 the conditions of the child care organization and its compliance
26 with this act and the rules promulgated under this act.

27 (c) Providing accurate and truthful information to the
28 department, and encouraging witnesses, such as staff and household
29 members, to provide accurate and truthful information to the



1 department.

2 (2) ~~The~~ **Except for a child care center for which a**
3 **superintendent provides certification that a health or fire**
4 **protection requirement under this act is met, a** licensee shall
5 allow the department, the bureau of fire services, or local
6 authorities access to the child care organization to carry out the
7 provisions of this act and rules promulgated under this act related
8 to the health or fire protection of children.

9 (3) A licensee shall keep the records the department
10 prescribes regarding each child in its control and care and shall
11 report to the department, if requested, the facts the department
12 requires with reference to the children upon forms furnished by the
13 department. Except as otherwise provided in this subsection and
14 subsection (4), records regarding children and facts compiled about
15 children and their parents and relatives are confidential and
16 disclosure of this information must be properly safeguarded by the
17 child care organization, the department, and any other entity in
18 possession of the information. Records that are confidential under
19 this section are available to 1 or more of the following:

20 (a) A standing or select committee or appropriations
21 subcommittee of either house of the legislature having jurisdiction
22 over protective services matters for children, according to section
23 7 of the child protection law, 1975 PA 238, MCL 722.627.

24 (b) The child advocate established in section 3 of the office
25 of the child advocate act, 1994 PA 204, MCL 722.923.

26 (c) An employee of an agency, bureau, division, or other
27 entity within the department, or an employee of a child caring
28 institution, or a child placing agency contracted with the
29 department, but only to the extent necessary for the administration



1 of child welfare services in each case. The director of the agency
2 responsible for child welfare services, or the director's designee,
3 is responsible for authorizing an employee to have access to the
4 records according to this subdivision and for ensuring that access
5 is given only to the extent necessary.

6 (d) A national accreditation program, only while on-site, for
7 the purpose of review and accreditation of a child welfare program,
8 agency, or organization.

9 (4) Notwithstanding subsection (3) and sections 5 and 7(2) of
10 the child protection law, 1975 PA 238, MCL 722.625 and 722.627,
11 information or records in the possession of the department or the
12 department of licensing and regulatory affairs may be shared to the
13 extent necessary for the proper functioning of the department or
14 the department of licensing and regulatory affairs in administering
15 child welfare or child care licensing under this act or in an
16 investigation conducted under section 43b of the social welfare
17 act, 1939 PA 280, MCL 400.43b. Information or records shared under
18 this subsection ~~shall~~**must** not be released by the department or the
19 department of licensing and regulatory affairs unless otherwise
20 permitted under this act or other state or federal law. Neither the
21 department nor the department of licensing and regulatory affairs
22 shall release or open for inspection any document, report, or
23 record authored by or obtained from another agency or organization
24 unless 1 of the conditions of section 7(5) of the child protection
25 law, 1975 PA 238, MCL 722.627, applies.

26 (5) A child care center, group child care home, or family
27 child care home licensee shall provide the department with child
28 information cards for all children presently enrolled for care, as
29 requested by the department, whenever the department initiates or



1 conducts an investigation, inspection, or assessment. If the
2 investigation, inspection, or assessment results in the department
3 pursuing disciplinary action as provided by section 11, the child
4 care center, group child care home, or family child care home
5 licensee must provide the department with child information cards
6 for newly enrolled children for the pendency of the proposed
7 disciplinary action.

8 (6) The department may suspend, deny, revoke, or refuse to
9 renew a license of the child care organization if the licensee does
10 not cooperate with an investigation, inspection, or examination
11 under this section.

12 (7) **An audio or video recording provided to the department by**
13 **a licensee under this section is exempt from disclosure under the**
14 **freedom of information act, 1976 PA 442, MCL 15.231 to 15.246.**

15 Sec. 11c. (1) In the case of a disaster, a child care center,
16 group child care home, or family child care home may temporarily
17 operate at an unlicensed location under this section. The
18 requirements to temporarily operate at an unlicensed location under
19 this section are as follows:

20 (a) The child care center, group child care home, or family
21 child care home cannot operate in a new location until after the
22 department has conducted an inspection and approved the new
23 location.

24 (b) ~~For~~ **Except as provided in this subdivision, for** a child
25 care center, a fire safety inspection, an environmental health
26 inspection, and, if necessary, a lead hazard risk assessment, and,
27 for a group child care home or family child care home, an
28 environmental health inspection, if necessary, are conducted within
29 45 days of the proposal of the new location. **A fire safety**



1 inspection and an environmental health inspection under this
2 subdivision are not required for a child care center located in a
3 school building if the superintendent of the intermediate school
4 district or local school district certifies that the location is
5 **safe**. If ~~any of the inspections find an inspection required under~~
6 **this subdivision finds** the new location to be unsafe, the child
7 care center, group child care home, or family child care home must
8 discontinue operation in that new location.

9 (2) If the child care center, group child care home, or family
10 child care home will remain at the new location, the licensee must
11 apply for and obtain a new license within 1 year of moving to the
12 new location.

13 (3) The department shall determine what constitutes a disaster
14 under this section.